

Utah's new social media law means children will need approval from parents

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Gov. Spencer Cox signs two social media regulation bills during a ceremony at the Capitol building in Salt Lake City on Thursday, March 23, 2023. Cox signed a pair of measures that aim to limit when and where children can use social media and stop companies from luring kids to the sites.

Trent Nelson/AP

SALT LAKE CITY — Utah became the first state to enact laws limiting how children can use social media after Republican Gov. Spencer Cox signed a pair of measures Thursday that require parental consent before kids can sign up for sites like TikTok and Instagram.

The two bills Cox signed into law also prohibit kids under 18 from using social media between the hours of 10:30 p.m. and 6:30 a.m., require age verification for anyone who wants to use social media in the state and seek to prevent tech companies from luring kids to their apps using addictive features.

The laws passed through Utah's Republican-supermajority Legislature are the latest reflection of how politicians' perceptions of technology companies are changing — and that includes pro-business Republicans.



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Tech giants like Facebook and Google have enjoyed unbridled growth for over a decade, but amid concerns over user privacy, hate speech, misinformation and harmful effects on teens' mental health, lawmakers have begun trying to rein them in. Utah's law was signed on the same day [TikTok's CEO testified before Congress](#) about, among other things, TikTok's effects on teenagers' mental health. But legislation has stalled on the federal level, pushing states to step in.

Other red states, such as Arkansas, Texas, Ohio and Louisiana have similar proposals in the works, along with New Jersey. California, meanwhile, enacted a law last year requiring tech companies to put kids' safety first by barring them from profiling children or using personal information in ways that could harm children physically or mentally.

In addition to the parental consent provisions, social media companies would likely have to design new features to comply with parts of the law to prohibit promoting ads to minors and showing them in search results. Tech companies like TikTok, Snapchat and Meta, which owns Facebook and Instagram, make most of their money by targeting advertising to their users.

What's not clear from the Utah bill and others is how the states plan to enforce the new regulations. Companies are already prohibited from collecting data on children under 13 without parental consent under the federal Children's Online Privacy Protection Act. For this reason, social media companies already ban kids under 13 from signing up to their platforms — but children can easily get around it, both with and without their parents' consent.



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Cox said studies have shown that time spent on social media leads to "poor mental health outcomes" for children.

"We remain very optimistic that we will be able to pass not just here in the state of Utah but across the country legislation that significantly changes the relationship of our children with these very destructive social media apps," he said.

Children's advocacy groups generally welcomed the law, with some caveats. Common Sense Media, a nonprofit focusing on kids and technology, hailed the law aimed at reining in social media's addictive features. It "adds momentum for other states to hold social media companies accountable to ensure kids across the country are protected online," said Jim Steyer, the CEO and founder of Common Sense.

He pointed to similar legislation in the works in California and New Jersey — and said the safety and mental well-being of kids and teens depend on legislation like this to hold big tech accountable for creating safer and healthier experiences online.

NATIONAL

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But Steyer said the other bill Cox signed giving parents access to children's social media posts would "deprive kids of the online privacy protections we advocate for. The law also requires age verification and parental consent for minors to create a social media account, which doesn't get to the root of the problem — kids and teens will still be exposed to companies' harmful data collection and design practices once they are on the platform."

The laws are the latest effort from Utah lawmakers focused on children and the information they can access online. Two years ago, Cox signed legislation that

called on tech companies to automatically block porn on cell phones and tablets sold, citing the dangers it posed to children. Amid concerns about enforcement, lawmakers in the deeply religious state revised the bill to prevent it from taking effect unless five other states passed similar laws.

The social media regulations come as parents and lawmakers are growing increasingly concerned about kids and teenagers' use and how platforms like TikTok, Instagram and others are affecting young people's mental health.

It is set to take effect in March 2024, and Cox has previously said he anticipates social media companies will challenge it in court.

Tech industry lobbyists quickly decried the laws as unconstitutional, saying they infringe on people's right to exercise the First Amendment online.

"Utah will soon require online services to collect sensitive information about teens and families, not only to verify ages, but to verify parental relationships, like government-issued IDs and birth certificates, putting their private data at risk of breach," said Nicole Saad Bembridge, an associate director at NetChoice, a tech lobby group.